

Sahab Singh v. State of U.P. — mutation of tubewell connection to be decided in four weeks

High Court of Judicature at Allahabad · Division Bench · 20 August 2019 (corrected 18 September 2019) · Writ-C No. 27395 of 2019 · **Writ disposed; licensee to decide mutation application by reasoned order in four weeks.**

HEADNOTE

Sahab Singh sought mandamus to install a transformer for tubewell connection No. 0402/003233. Reading clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005, the Division Bench held that the licensee must consider a pending application and, absent legal impediment, act speedily within four weeks, and directed respondent No. 3 to pass a reasoned speaking order either way. A later correction substituted “transfer/mutation in respect of electricity connection” for “new electricity connection” in paragraphs 3, 5 and 7 of the 20 August 2019 order.

FACTUAL SUMMARY

Sahab Singh sought mandamus directing the distribution licensee to install a transformer for tubewell connection No. 0402/003233 at village Durgpur, Naugaon, District Mainpuri, alleging inaction on his application. The Division Bench first treated the request as one for a new connection under Chapter IV of the U.P. Electricity Supply Code, 2005. On a correction application allowed on 18 September 2019, the words “new electricity connection” in paragraphs 3, 5 and 7 of the 20 August 2019 order were substituted with “transfer/mutation in respect of electricity connection.”

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

duty to decide transfer/mutation application within four weeks

HOLDING

Clauses 4.1, 4.3 and 4.4 of the U.P. Electricity Supply Code, 2005 oblige the licensee to consider an application for transfer or mutation of an electricity connection and, if there is no legal impediment, to act speedily within four weeks. Unexplained inaction in granting or refusing the request is unjustified. The licensee must pass a reasoned speaking order either way within four weeks of production of a certified copy of the order. ¶ 5-7

FLAG Clause 4.3 is written as “4,3”. After correction the dispute is transfer/mutation of an existing connection, not a new connection; the Court left clauses 4.1, 4.3 and 4.4 as the cited source of the four-week duty.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER TRANSFER OR MUTATION OF CONNECTION NO. 0402/003233 SHOULD BE GRANTED, OR WHETHER ANY LEGAL IMPEDIMENT EXISTS

The Court directed a reasoned order either way and did not decide the merits of the application. ¶ 7

NOT DECIDED — WHETHER THE LICENSEE MUST INSTALL A TRANSFORMER FOR THE TUBEWELL

The mandamus prayer was not granted; only a direction to decide the mutation application issued. ¶ 2